

11. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
***HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL**
FILED BY:

TENTATIVE RULING:

On February 19, 2026, plaintiff Sebrion Mchenry-Stewart ("Plaintiff") filed a motion for leave to serve defendants Jesse Gillespie and Regional Protection Agency Services Inc. ("Defendants") by email (the "Motion for Leave to Serve by Email"). The Motion for Leave to Serve by Email was set for hearing on June 29, 2026.

Background

Plaintiff filed this action on January 20, 2026. The Petition seeks monetary damage and enforcement of a Decision of the Labor Commissioner of the State of California in Plaintiff's favor dated December 18, 2025.

Analysis

Plaintiff references Code of Civil Procedure section 415.50(c). That section provides "Service of a summons in this manner is deemed complete as provided in Section 6064 of the Government Code" and relates to service via publication when permitted. See Code Civ. Proc. § 415.50(c).

This is not a request for leave to serve via publication.

The Court does not find any basis to order service of process on either of the Defendants by email.

Lastly, it is not clear to the Court why this suit is being pursued if the Labor Commissioner may initiate the appropriate process to confirm a court judgment based on the Decision.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Serve by Email is DENIED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA

TENTATIVE RULING:

Continued to August 10, 2026, 9:00 am, in Department 34, pursuant to the stipulation of the parties and the Court's Order signed June 17, 2026.